

CV-25-003485 ESTACIO, ANGELA vs CABRAL, ANNA – a) Defendant’s Demurrer to the First, Second, Third, and Fourth Causes of Action of Plaintiff’s First Amended Complaint – CONTINUED to October 27, 2026, at 8:30 am in Department 22; b) Defendant’s Motion to Strike Improper Matter from First Amended Complaint – CONTINUED to October 27, 2026, at 8:30 am in Department 22.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2027-04-30

Motion: a-b) The demurrer is procedurally defective. It fails to comply with Code of Civil Procedure section 430.41, which requires that the parties meet and confer “in person, by telephone, or by video conference.” The motion to strike is similarly procedurally defective. (Code Civ. Proc., § 435.5.) Here, the effort to meet and confer was insufficient. The only attempt to comply with Code of Civil Procedure section 430.41 was the exchange of written communications sent via email. (Declaration of Megan Johnson, ¶¶ 3–5.) Communications sent by email are insufficient. The Legislature’s specification of the authorized methods for meeting and conferring reflects its belief that more personal forms of communication—beyond written exchanges—are better suited to resolving disputes informally, thereby reducing the burden on both the courts and the parties. Accordingly, the Court CONTINUES the matter to October 27, 2026, at 8:30 am in Department 22. The parties are ordered to meet and confer by one of the methods set forth in Code of Civil Procedure section 430.41(a) by no later than six court days before the hearing. Moving Party to file and serve a declaration no later than five court days before the hearing describing the efforts to meet and confer and any narrowing of the issues.

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